City of Palo Alto Clerk's Department
AUG 11 2026
Received

County of Santa Clara Registrar of Voters

Against

BALLOT MEASURE PRIMARY ARGUMENT FORM

This **Ballot Measure Primary Argument Form** must be submitted **for all ballot measure PRIMARY ARGUMENTS**, with required signatures and author information. Please submit completed forms to Mahealani Ah Yun, Palo Alto City Clerk by in-person appointment no later than August 11, 2026, 4:00pm.

Any errors submitted on the form or primary argument will be printed in the County Voter Information Guide and/or ballot exactly as submitted. A proof will be sent to the primary filer for confirmation that it matches the argument as submitted—no other corrections will be accepted.

Assembly Bill 1416 was signed by the Governor and is effective as of January 1, 2023. This legislation (Elections Code section 9170) allows primary argument signers to provide a list of individuals, associations, nonprofit organizations, or businesses that are signers or are listed within the text of the argument who support or oppose a ballot measure to be listed under the ballot label. If you wish to submit a list of supporters or opponents, please complete Section 4 on page 5 of this form by providing a list of names of the individuals, associations, nonprofit organizations, and/or businesses to be listed as supporters or opponents. A sample ballot label is provided on page 9, Section 6: Appendix C.

Office Use Only

FILED
AUG 11 2026
REGISTRAR OF VOTERS
COUNTY OF SANTA CLARA
By [redacted] Deputy

Time/Date Stamp

Date of Election: November 3, 2026 General Election
Jurisdiction: City of Palo Alto

Primary Argument due date (E-84): August 11, 2026, 4:00 pm
Examination Period (E-83 to E-74): August 12, 2026 to August 21, 2026

Rebuttal Argument due date (E-77): August 18, 2026, 4:00pm
Examination Period (E-76 to E-67): August 19, 2026 to August 28, 2026

Measure Letter J (if available – letters will be assigned after 5:00 p.m. on E-88)

Arg ig

☐ Primary Argument in Favor / Proponent

☑ Primary Argument Against / Opponent

Declaration Related to Proponent/Opponent Primary Arguments
(Elections Code §§ 9161, 9164, 9167, 9170, 9501, 9501.5, 9504, 9600)

☐ **I am an Author of the Proponent Primary Argument** (noted above) for **Measure** _____ being submitted. I support this measure.

☑ **I am an Author of the Opponent Primary Argument** (noted above) for **Measure** J being submitted. I oppose this measure.

FILER / SIGNER SECTION

The Filer of a Primary Argument is the person or entity that is responsible for filing an argument for or against (or in rebuttal to an argument for or against) a measure. The Signer of the Primary Argument is a person whose name is listed and published in the County Voter Information Guide in the election materials after the argument as one of the signatories. Generally, a Filer or Signer may be a district or member(s) of the governing board of that district, an individual voter who is eligible to vote on the measure, a bona fide association of citizens, or a combination of such voters and associations. The Filer signs the argument submission form, attesting under penalty of perjury that they meet the requirements to file an argument. The Filer is typically the main proponent or opponent of the measure but does not have to be. A Filer can also be a Signer of the argument. State law allows for up to five signers for any argument. Therefore, five people may be both Filers and Signers. However, Filers are not required to be Signers.

NOTE: Personal contact information including street address, phone and email will be redacted prior to posting online. Do not include personal contact information when using business information as it is not redacted prior to posting online.

FILL OUT BOTH FILER AND SIGNER SECTIONS IF YOU ARE A FILER AND A SIGNER OF THE PRIMARY ARGUMENT

*** Required Information.**

I am the **FILER** of the primary argument: ☑ Yes / ☐ No

I am also a **SIGNER** of the primary argument: ☑ Yes / ☐ No

AS A FILER: My contact information for receiving the opposing author's primary argument is:

*** My Name is:** Mark W.A. Hinkle

INDICATE IF ADDRESS IS: ☑ **Residential or Residential Mailing;** ☐ **Business or Business Mailing**

*** Address:** [redacted] Morgan Hill CA 95037

*** Email Address:** [redacted] Phone Number (cell/direct): [redacted]

DO NOT FILL OUT BELOW SIGNER SECTION IF YOU ARE A FILER ONLY OF THE PRIMARY ARGUMENT

AS A SIGNER: I am a: ☐ Registered Voter in the District ☐ Governing Board Member ☑ *** Principal Officer of an Organization**

*** I have attached one of the following items listed on Page 2 to this form.**

*** My GENDER is:**

☑ Masculine ☐ Feminine ☐ Androgynous or Non-binary ☐ Other: _____

*** My SIGNING ORDER** on the Argument text to be published is: ☑ 1 / ☐ 2 / ☐ 3 / ☐ 4 / ☐ 5 *(please check one)*

*** My name as a SIGNER** (signature to be printed with the primary argument) is: Mark W.A. Hinkle
(do not include degrees or titles print or type signature in upper- and lower-case font)

*** TITLE OF SIGNER** to be printed with the primary argument) is: President: Silicon Valley Taxpayers Association
(limited to one title only do not include descriptors: print or type title in upper- and lower-case font)

SIGNATURE ➡ [redacted]

Under penalty of perjury, I attest the above information meets the required criteria for an individual or for an organization or bona fide association of citizens for purposes of submitting an argument:

ROV ONLY ACCEPTS WET OR DOCUSIGNED SIGNATURES (signatures will be redacted prior to posting online)

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ARGUMENT AGAINST MEASURE J

VOTE NO ON THIS DISHONEST MEASURE

This Measure is an attempt to manipulate voters into approving a tax increase the purpose of which the City knows most Palo Altans don't support.

64

When pressed by reporters, Councilmember Pat Burt acknowledged that the real purpose of the sales tax increase is to enable the City to pay the Palo Alto School District $65.5 million to purchase the land at Cubberley.

Why doesn't the Measure state this? Because, as City Staff has acknowledged, buying the land didn't poll well when they surveyed residents. In other words, this is a bait and switch, driven by polling data.

49

The two-thirds of surveyed residents who said they opposed the land purchase were right.

Why should taxpayers, who already fund **both** the City and the School District, pay **$65.5 million more** to move public money from one to the other?

We don't even know how the $65.5 million price for the property was determined.

57

It was established behind closed doors. City Hall refuses even to provide an appraisal of the property.

There is no separate cookie jar at City Hall for the tens of millions this tax increase would raise.

The money can be used for anything. Maybe that's developing Cubberley, maybe that's installing a luxe gym on the executive floor of City Hall.

The proposed tax increase is *permanent*.

85

Why permanent, when the land purchase is a one-time expense?

And why a regressive sales tax hike which would hit lower-income families hardest?

Both the *Daily Post's* editor and the *Weekly's* government watchdog strongly oppose this Measure.

Please reject Measure J.

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